

Nadia Zahmoul

Subject: URGENT – Application to Court of Appeal (CA-2024-001342) and Pre-Action Protocol Notice to MoJ & HMCTS — Procedural Unfairness & Equality Act Breaches

Date: Monday, October 20, 2025 at 8:25:19 AM British Summer Time

From: Nadia <nadia@rosekross.com>

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Priority: High

Attachments: CA-2024-001342_NZahmoul_Application_and_Bundle_20Oct2025 with pagination.pdf, Pre-Action Protocol Letter + Annex A .pdf

To:
civilappeals.registry@justice.gov.uk
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public.enquiries@justice.gov.uk

Cc:
david.lammy.mp@parliament.uk
press.office@justice.gov.uk

Bcc:
(selected MPs, Peers, journalists, and advocacy organisations for transparency)

Dear Sir or Madam,

Please find attached two documents of urgent importance:

1. **Application for Review and Correction** – *Court of Appeal Case No. CA-2024-001342*, dated **20 October 2025**, including full affidavit, grounds, skeleton argument, and exhibits.
2. **Pre-Action Protocol Letter** addressed jointly to the **Ministry of Justice** and **HMCTS**, concerning systemic failures in the administration of justice and equality compliance.

This correspondence sets out **serious procedural and equality breaches** arising from the handling of my case, including the unlawful revocation of *Family Procedure Rules Part 3A* participation measures, the suppression of vulnerability evidence, and discriminatory reasoning contrary to the **Equality Act 2010**, **Human Rights Act 1998**, and **Articles 6 & 14 ECHR**.

The **Ministry of Justice** and **HMCTS**, as the authorities responsible for the administration of the courts and implementation of equality duties, are directly accountable for ensuring procedural fairness, reasonable adjustments, and compliance with disability and human-rights standards across all court proceedings.

Public-Interest Importance

This matter raises systemic concerns of **national significance** regarding how autistic and disabled litigants are treated in the justice system.

It highlights breaches of the **Autism Act 2009**, **Equality Act 2010**, and **FPR Part 3A**, and the failure to provide or maintain participation measures necessary for a fair trial.

The implications extend beyond this individual case to the **structural integrity and inclusivity** of judicial processes in England & Wales.

To ensure transparency and accountability, this correspondence has been copied to **Members of Parliament, Peers, equality and autism advocacy organisations, and selected journalists**. Their inclusion is not to politicise the issue but to ensure that oversight and reform follow established democratic and legal processes.

Requested Action

Please confirm:

- Receipt and registration of this correspondence;
- The reference and contact for the MoJ/HMCTS team handling the pre-action letter; and
- The next procedural step for the Court of Appeal in respect of the enclosed application.

I remain available to provide **updated medical evidence** regarding my recent mental-health relapse (since **26 September 2025**) upon request.

Thank you for your prompt acknowledgment.

Yours faithfully,
Nadia Zahmoul
nadia@rosekross.com

Attachments:

CA-2024-001342 – Application Bundle (20 Oct 2025).pdf

Pre-Action Protocol Letter to MoJ & HMCTS (20 Oct 2025, Annex A included).pdf